

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2026CUPN065018: STEPHANIE GARCIA, et al. vs GREENSLADE CRONK, LLP, et al.

09/01/2026 in Department 42

Demurrer for Defendants David Davidi and Law Offices of David Davidi

Motion: Defendants the Law Offices of David Davidi and Attorney David Davidi's Demurrer to the Second Through Seventh Causes of Action in the Complaint (*Opposed*)

Tentative Ruling:

The requests for judicial notice are granted. (Evid. Code, § 452, subd. (d).)

Defendants the Law Offices of David Davidi and Attorney David Davidi (collectively "Davidi")'s Demurrer to the Second Through Seventh Causes of Action in the Complaint is OVERRULED.

Demurrer to the Second Through Fourth and Sixth Causes of Action

A statute of limitations defense may be asserted by general demurrer if the complaint shows on its face that the statute bars the action. (*Mitchell v. State Dept. of Public Health* (2016) 1 Cal.App.5th 1000, 1007.) However, "[a] demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. [Citation.] In order for the bar ... to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred. [Citation.]" [Citation.]" (*Geneva Towers Ltd. Partnership v. City and County of San Francisco* (2003) 29 Cal.4th 769, 781.)

Section 340.6 provides that the statute of limitations for legal malpractice commences when the client discovers, or should have discovered, the cause of action. The period is tolled during the times, *inter alia*, (i) the client "has not sustained actual injury," (ii) the negligent attorney continues to represent the client, (iii) the attorney willfully conceals facts constituting the negligence, or (iv) the plaintiff is under a disability that "restricts the plaintiff's ability to commence legal action." (*Laird v. Blacker* (1992) 2 Cal.4th 606.) Section 340.6 states two distinct and alternative limitation periods: One year after actual or constructive discovery, or four years after occurrence (the date of the wrongful act or omission), whichever occurs first. (*Favila v. Katten Muchin Rosenman LLP* (2010) 188 Cal.App.4th 189, 223.)

Section 340.6 applies to the Second cause of action for Legal Malpractice; the Third cause of action for Breach of Fiduciary Duty; the Fourth cause of action for Breach of Contract; and the Sixth cause of action for Negligent Misrepresentation. (*Lee v. Haney* (2015) 61 Cal.4th 1225.)

Davidi contends that the one-year limitations period in section 340.6, subdivision (a), began to run from the date of dismissal of the personal injury action (March 14, 2025). Davidi contends that as of that date, Plaintiffs knew of the existence of their claims and, based on that assumption, argues that Plaintiffs had to file their complaint by no later than March 14, 2026, which they

failed to do. The Complaint was filed on April 15, 2026. In support of this argument, Davidi contends that they never represented Plaintiffs at all. But even if they did, that representation ended when they referred Plaintiffs to the Greenslade Defendants in August 2020. They rely on the judicially noticed documents filed in the personal injury action to argue that they did not represent Plaintiffs in the personal injury action.

Davidi's demurrer challenges the Complaint's factual allegations, which state that Davidi did represent Plaintiffs and continued to represent them in the personal injury lawsuit. (See Complaint, ¶ 5 [believing and relying on Davidi's representations, Plaintiffs initially retained Davidi]; ¶ 6 [alleging that Davidi and Greenslade Cronk entered into a series of written and/or oral referral-fee and co-counsel agreements under which Plaintiff referred personal injury matters to Defendants and was entitled to a specified percentage of attorney fees recovered]; ¶¶ 9, 11, 12, 20 ["defendants," which term is defined to include Davidi in ¶ 1, recommended settlement]; ¶ 46 [listing defendants' failures].) The judicially noticeable fact that the Greenslade Defendants were counsel of record in the personal injury action, or that Davidi is not listed as counsel, does not conclusively negate a co-counsel relationship.

Additionally, the fact that the Greenslade Defendants failed to pay the settlement proceeds after receipt on December 4, 2024 does not conclusively show that Plaintiffs knew or should have known of the harm done to them. Nor does the Complaint show on its face that Plaintiffs knew or should have known the existence of their claims on the date their personal injury action was dismissed. Davidi's arguments are not established by the four corners of the complaint or any judicially noticeable facts. The Court overrules the demurrer to the second, third, fourth, and sixth causes of action on the ground of statute of limitations.

Demurrer to the Fifth and Seventh Causes of Action

The elements of fraud are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or scienter); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.)

"[T]he elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage." (*Marketing West, Inc. v. Sanyo Fisher (USA) Corp.* (1992) 6 Cal.App.4th 603, 612–613.)

Davidi contends that the Complaint fails to allege fraud and concealment because they are based entirely on statements made on their law firm website. Davidi argues the website statements are puffery, which is not actionable, or alternatively, that the statements are applicable to clients only, and that Plaintiffs cannot rely on such statements because Plaintiffs were never clients. Again, for purposes of demurrer, it has not been established that Plaintiffs were not clients of

Davidi. Additionally, while the website contains no express guarantee or warranty of results of a particular representation, it does include statements as to how cases will be staffed and monitored. Those statements are not mere puffery and could serve as the basis for a fraud based claim that was otherwise properly alleged. Davidi does not challenge the other elements of these claims. The demurrer is overruled.